

25SMCV06244 25SMCV06244

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HEARING DATE: August 27, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: 2141 South Bentley Homeowners Association v. Diana Chan

CASE NUMBER: 25SMCV06244

COMP. FILED: November 25, 2025

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: 2141 South Bentley Homeowners Association

RESPONDING PARTY: Diana Chan

BACKGROUND

This case arises from a dispute between a homeowners association and one of its members. Plaintiff 2141 South Bentley Homeowners Association ("Association") manages and operates individual condominiums and common areas located at 2141 South Bentley Avenue Homeowners Association in Los Angeles, County of Los Angeles, California ("Community"). Defendant Diana Chan is the owner of Unit 208, which is within the Association (the "Property").

The Property is real property located within the Community and therefore is governed by the Governing Documents including the Covenants, Conditions and Restrictions (or CC&Rs). The Governing Documents constitute an enforceable contract between Plaintiff and Defendant, and as such, Defendant and the Property are subject to the provisions of the Governing Documents.

Contrary to the Governing Documents, Defendant has not allowed entry into the Property to conduct necessary health and safety inspections of the plumbing and balcony. Although Defendant permitted access to Association plumbers on limited occasions to address active plumbing leaks, Defendant refused to allow the Association, or its vendors access to the Unit for

inspections and repairs. (Decl. Keith ¶¶ 9-12; Decl. Betos ¶¶ 18-29, Exhibits B-I.) As a result, the Association was unable to complete necessary inspections and repairs to the Common Area and the Unit. (Decl. Betos ¶¶ 19, 28, 30.)

Defendant refused access based on a purported disability, but she has not provided any documentation to support her claim. Defendant's continued refusal to permit access has prevented the Association from carrying out its obligations to inspect, maintain, and repair the Common Area and has allowed conditions relating to recurring plumbing issues and balcony safety to remain unaddressed. Defendant's repeated plumbing issues have caused damage to the Common Area and neighboring units, and Defendant's refusal to permit access constitutes a continuing violation of the Governing Documents and a nuisance. (Decl. Betos ¶28, Exhibit H.)

On November 25, 2025, Plaintiff filed a Complaint alleging four claims for breach of the CC&R's, nuisance, negligence and declaratory relief. The Complaint sought compensatory and general damages of \$2,375, injunctive relief, a declaration of rights, and attorneys' fees and costs.

As to injunctive relief, Plaintiff sought an order that "a. Defendants shall immediately cease and desist from engaging in further nuisance conduct within the Community, including but not limited to: blocking access to Plaintiff's agents including, but not limited to, qualified repairmen or other persons, to conduct necessary inspection and maintenance. b. Defendants shall immediately cease and desist from allowing their property to fall into a state of disrepair to the extent that same constitutes a nuisance or interference with the Community's quiet enjoyment or a business/commercial activity; c. Defendants must allow access to their individual property so that necessary inspection and maintenance of the balconies and plumbing can be completed; d. Defendant shall maintain their property in such a way of high quality and state of repair, in compliance with Plaintiff's Governing Documents; e. Should Defendants fail and refuse to promptly and properly allow access for repair and maintenance, the Association may access and make inspection and repair the Unit at Defendants' sole cost and expense; f. Defendants shall be enjoined from otherwise violating the Governing Documents."

Plaintiff served Defendant with the summons and complaint by publication. Defendant did not respond. On August 10, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendant. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

The Association requests default judgment against Defendant in the amount of \$2,375 in damages reflecting unpaid repair costs. In addition, the Association requests injunctive relief that: "(1) Defendant is ordered to immediately cease and desist from engaging in further nuisance conduct within the Community which interference with the Community's quiet enjoyment; (2) Defendant is ordered to allow access to the Property by Plaintiff's, their agents, servants, representatives, vendors, qualified repairmen, or other persons to conduct necessary inspection and maintenance of plumbing, balconies, and other elements of the Property by no later than October 31, 2026 and shall continue to allow access as necessary for further inspection and repair; and (3) Defendant shall conduct any repairs to their private property deemed necessary by Plaintiff's professional, qualified repairmen by no later than 30 days after report, summary, or proposal for repair and thereafter clean and maintain their property in such a way of high quality and state of repair, in compliance with Plaintiff's Governing Documents. In the event Defendant fails and refuses to promptly allow access by October 31, 2026 for inspection, repair, and maintenance, the Association seeks permission to access the Property and to inspect and repair the Unit at Defendant's sole cost and expense." Additionally, Plaintiff seeks \$15,488.50 in attorney's fees and \$1,710.83 in costs.

ANALYSIS

There are material differences between the remedy Plaintiff seeks as part of its request for default judgment, and the remedy sought in their Complaint. Specifically, Plaintiff seeks an injunction that "Defendant shall conduct any repairs to their private property deemed necessary by Plaintiff's professional, qualified repairmen by no later than 30 days after report, summary, or proposal for repair". However, this 30 day deadline is not stated in the Complaint. A default judgment cannot differ in kind from what is sought in the Complaint. The Legislature has provided that a default judgment "cannot exceed that demanded in the complaint." (§ 580, subd. (a); see § 585.)

Otherwise, a defendant would have no notice of the actual relief sought against him or her. Procedural due process requires “that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him. The logic underlying this principle is simple: a defendant who has been served with a lawsuit has the right, in view of the relief which the complainant is seeking from him, to decide not to appear and defend. However, a defendant is not in a position to make such a decision if he or she has not been given full notice.” [Citation.]” (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1520 italics added.)

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff’s Request for Default Judgment is DENIED.